

# HOUSE BILL No. 1420

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## DIGEST OF INTRODUCED BILL

**Citations Affected:** IC 5-10.3-8-10.5.

**Synopsis:** Assignment of public employee pensions. Permits a court to order in an action for dissolution of marriage the assignment or garnishment of the monthly benefits that a member of the public employees' retirement fund is entitled to receive to another party in the dissolution action.

**Effective:** July 1, 2026.

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January 8, 2026, read first time and referred to Committee on Employment, Labor and Pensions.

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Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

## HOUSE BILL No. 1420

A BILL FOR AN ACT to amend the Indiana Code concerning pensions.

*Be it enacted by the General Assembly of the State of Indiana:*

1       SECTION 1. IC 5-10.3-8-10.5 IS ADDED TO THE INDIANA  
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS  
3 [EFFECTIVE JULY 1, 2026]: **Sec. 10.5. (a) This section applies**  
4 **when a member is a party to an action for dissolution of marriage**  
5 **under IC 31-15-2.**

6       **(b) Notwithstanding sections 9 and 10 of this chapter, a court**  
7 **may do either of the following in a dissolution decree (as defined in**  
8 **IC 31-9-2-41):**

9           **(1) Order the assignment of all or part of the monthly benefits**  
10           **that the member is entitled to receive to another party in the**  
11           **action for dissolution of marriage.**

12           **(2) Order the garnishment and transfer of all or part of the**  
13           **monthly benefits that the member is entitled to receive to**  
14           **another party in the action for dissolution of marriage.**

15       **(c) The board shall pay the amounts ordered under subsection**  
16 **(b):**

17           **(1) at the time the member:**



1                   **(A) is entitled; or**  
2                   **(B) was entitled;**  
3           **to receive the amounts;**  
4           **(2) to the parties specified in the order; and**  
5           **(3) in the proportionate amounts required by the order.**

